

26PSCV00495 26PSCV00495

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 26PSCV00495 Hearing Date: August 24, 2026 Dept: G

Defendant Bow Plumbing Group, Inc.'s Demurrer
to Plaintiff General Casualty Co. of Wisconsin's Amended Complaint

Respondent:

Plaintiff General Casualty Co. of Wisconsin

TENTATIVE

RULING

Defendant

Bow Plumbing Group, Inc.'s Demurrer to Plaintiff General Casualty Co. of
Wisconsin's Amended Complaint is CONTINUED.

BACKGROUND

This

is a negligence and product liability action.

Defendant Net Development Co. (Net) allegedly manufactured a building
for subrogor Amazing Hospitality Corp. (Amazing Hospitality). Net allegedly installed CPVC pipes
manufactured by defendant Bow Plumbing Group, Inc. (Bow). On February 29, 2024, a hot water CPVC pipe
allegedly fractured and leaked, damaging the property. Subrogee plaintiff General Casualty Co. of
Wisconsin (GCCW) allegedly insured the property for Amazing Hospitality.

On

February 10, 2026, GCCW filed the Complaint.

On June 25, 2026, GCCW filed the operative Amended Complaint, alleging
causes of action for (1) negligence, (2) strict product liability based on a
manufacturing defect, (3) strict product liability based on a design defect,

and (4) strict product liability based on a failure to warn.

On July

28, 2026, Bow filed this demurrer. On August

10, 2026, GCCW filed the opposition, and on August 17, 2026, Bow filed the reply.

The

demurrer is set for hearing on August 24, 2026.

ANALYSIS

Bow

specifically demurs to the second through fourth causes of action based on the failure to state sufficient facts and exceeding the scope of leave to amend. For the following reasons, the court the demurrer is CONTINUED.

Legal

Standard

Pursuant

to Code of Civil Procedure section 430.41, prior to filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

(Code Civ. Proc., §430.41, subd. (a).)

It further provides that “the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 430.41, subd. (a)(1).)

While

Code of Civil Procedure section 430.41, subdivision (a)(4) makes clear failing to meet and confer is not grounds to overrule a demurrer, courts “are not required to ignore defects in the meet and confer process” and if the court determines “no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (Dumas v. Los Angeles County Bd. of

Discussion

Bow's

counsel provides a declaration with exhibits that demonstrate that they sent meet and confer emails to the GCCW's counsel and attempted to call them on the phone, but GCCW's counsel did not respond.

(See Thorosian Decl., ¶¶ 5–6; see also Thorosian Decl.,

Exh. A.) However, Bow's counsel did not

meet and confer in person, by video conference, or by telephone with GCCW's counsel as required by Code of Civil Procedure section 430.41.

Therefore,

the demurrer is CONTINUED, and Bow's counsel is ORDERED to MEET AND CONFER with GCCW's counsel by telephone, video conference, or in person and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.

CONCLUSION

For

these reasons, the demurrer is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Defendant

Bow Plumbing Group, Inc. is ORDERED to MEET AND CONFER with plaintiff General Casualty Co. of Wisconsin regarding the present demurrer and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.